

24SMCV02488 24SMCV02488

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-26

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Case Number: 24SMCV02488 Hearing Date: June 26, 2026 Dept: I

This is a motion to compel further. The underlying case is a construction dispute. Defendant propounded written discovery and claims that the responses to special interrogatories 5 and 6 are not sufficient. Interrogatory 5 seeks identification of the subcontractor's supervisor and interrogatory 6 is to set forth the amount billed for that subcontractor. Defendant also complains about requests for production 8 and 18. RFP 8 seeks all communications between plaintiff and anyone else concerning the property, and RFP 18 is for accounting books and records regarding the project. The court notes that plaintiff agreed to provide responsive documents, but objected that the requests are vague and ambiguous. In opposition, plaintiff says that further responses should be done and served before the hearing. It has been hard, they claim, to get older documents, but that ought to be done by now.

As to the interrogatories, the court tends to agree with defendant. The response is essentially to refer to interrogatory 1, but the response to interrogatory 1 does not give the information. Therefore, the motion is GRANTED as to the special interrogatories. Verified supplemental responses without objection are to be provided within 30 days. As to the RFP, the motion would seem to be MOOT, although plaintiff will need to say whether any documents are being withheld on the basis of the objection and, if plaintiff is standing on "vague and ambiguous," plaintiff will need to set forth how it is defining the offending terms for purposes of the production.